

		in default. (Code Civ. Proc. § 1010; see <i>Sporn v. Home Depot USA, Inc.</i> (2005) 126 Cal.App.4th 1294, 1301.) Attachment is a prejudgment remedy that allows a creditor to have a lien on the debtor's assets until final adjudication of the claim sued upon. (Code Civ. Proc. § 481.010, et seq.) Upon filing of the complaint, or at any time thereafter, the plaintiff may apply for a right to attach order ("RTAO") & writ of attachment by filing an application with the court in which the action is brought. (Code Civ. Proc. § 484.010.) In the discretion of the court, the amount to be secured by the attachment may include estimated costs and allowable attorney's fees. (Code Civ. Proc. §§ 482.110 & 483.015.) The court may only issue a RTAO if it finds the following: (1) The claim upon which the attachment is based is one upon which an attachment may be issued - i.e., the claim is: (a) for money based on contract; (b) of a fixed or readily ascertainable amount not less than \$500; (c) either unsecured or secured by personal property; and (d) against an individual, that the claim arises out of the conduct by the individual of a trade, business, or profession.; (2) The plaintiff has established the probable validity of the claim upon which the attachment is based.; (3) The attachment is not sought for any purpose other than the recovery on the claim upon which the attachment is based.; (4) The amount secured by the attachment is greater than zero. (Code Civ. Proc. §§ 483.010 & 484.090.) Here, the claim is based on a breach of contract of a fixed amount not less than \$500, which is unsecured. (Compl. ¶¶ BC-2.) As previously noted, the amount sought to be secured is \$233,295.50. (Application, ¶ 8.) Plaintiff establishes the claim is on upon which an RTAO may be based; Plaintiff has established the probability of the claim; the attachment does not appear to be sought for any purpose than the recovery on the claim which the attachment is based; and the amount secured by the attachment is greater than zero. (Chernichovski Decl. ¶¶ 2-9; Exs. A and B thereto.) Based on the foregoing, the Court GRANTS Plaintiff Michael Chernichovski's Unopposed Application for Right to Attach Order.
3	2021-01194029 <i>Davidson vs. The Boeing Company, Inc.</i>	OFF CALENDAR
4	2023-01318221 <i>Flint vs. Sun Haven Care, Inc.</i>	Demurrer to Complaint Defendants Sun Haven Care, Inc. dba Terrace View Care Center, NAHS Southeast, Inc. and NAHS Holding, Inc.'s Demurrer to the Complaint is SUSTAINED without leave to amend as to the first cause of action and otherwise OVERRULED.